

TENTATIVE RULING FOR CIVSB2326003
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Jazo v. General Motors, LLC, et al
Motion: Attorney Fees
Movant: Bryan Israel Jazo (Jazo/Plaintiff)
Respondent: General Motors, LLC (GM/Defendant)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On October 25, 2023, Plaintiff filed a complaint against Defendant for causes of action for: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of express written warranty; and (5) breach of the implied warranty of merchantability. On September 29, 2025, Plaintiff accepted GM's Code of Civil Procedure section 998 offer. The offer provided for payment of \$60,000, plus prejudgment interest, for a total of \$71,605.48, including repurchase of the subject vehicle, with attorney fees and costs to be determined by noticed motion.

On October 9, 2025, this matter came on calendar for a Trial Readiness Conference. At that time Plaintiff's counsel announced that the matter settled. The Court thereafter dismissed the case without prejudice and retained jurisdiction over the matter under CCP 664.6. On October 9, 2025, Plaintiff's counsel served "Notice of Ruling Re. October 9, 2025, Trial Readiness Conference. On February 4, 2026, Plaintiff filed the instant motion to recover attorney fees in the total amount of \$36,020.50. GM opposes.

ANALYSIS

Timeliness of Motion

California Rules of Court 3.1702 states in pertinent part, "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case (CRC 3.1702(b)(1))

California Rules of Court 8.104 states in pertinent part,

Unless a statute or rules 8.108, 8.702, or 8.712 provides otherwise, a notice of appeal must be filed on or before the earliest of:

- (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served;
- (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or
- (C) 180 days after entry of judgment. (CRC 8.104(a)(1)(A)(B)(C).

While the matter of *Madrigal v. Hyundai Motor America* (2023) 90 Cal. App. 5th 385 (Madrigal), primarily addresses the costs shifting effect with a CCP 998 offer, it is very helpful in analyzing GM's timeliness argument. GM argues that the motion should be denied as it was filed untimely. While the Court agrees that the motion is filed untimely, it does so for a different reason than argued by GM.

The Madrigal Court held that, "given that the [Song-Beverly Act](#)'s definition of "judgment" mirrors [section 998](#)'s definition of "judgment," it would be inconsistent to conclude that the settlement resulted in a judgment triggering application of the [Song-Beverly Act](#)'s fees provision, but did not result in a judgment triggering application of [section 998, subdivision \(c\)](#)'s cost-shifting provisions, when the term "judgment" in both statutes has been construed in the same way." (Madrigal at 403)

The Madrigal court held "[w]e agree with Hyundai that the terms of the stipulated settlement under [section 664.6](#) constituted a "judgment" within the meaning of [section 998, subdivision \(c\)](#) and that the trial court should have examined the parties' entitlement to costs and attorney fees through the lens of that statute. (Madrigal at 397). The Madrigal Court also adopted the expansive definition of judgment as outlined in [DeSaulles v. Community Hospital of Monterey Peninsula \(2016\) 62 Cal.4th 1140](#), "[A]s between the parties thereto and for purposes of enforcement of settlement agreements, a compromise agreement contemplating payment by defendant and dismissal of the action by plaintiff is *the legal equivalent of a judgment* in plaintiff's favor.'" (Madrigal at 400 citing to ([DeSaulles, supra, at p. 1155](#), citing [Goodstein, supra, 27 Cal.App.4th at p. 907](#), italics added.)

In the case at hand, on September 29, 2025, Plaintiff accepted the 998 offer and the parties entered into a settlement agreement outside of Court. At the time of the Trial Readiness Conference, Plaintiff's counsel announced the settlement agreement, however there is no record

of the terms of the settlement agreement. On the same date, the Court accepted counsel's representations, dismissed the matter without prejudice and retained under CCP 664.6.

Outside of the issue of attorney fees, the result of the settlement agreement was a “final determination of the parties rights within the meaning of section 577”. (Madrigal at 402) The parties use of section 664.6 further supports the conclusion that the settlement agreement conclusively resolved all issues between the parties. A settlement under this provision [CCP §664.6] “is not incidental to the management of the lawsuit; it ends the lawsuit.” (Madrigal at 402, citing to [*Levy v. Superior Court \(1995\) 10 Cal.4th 578, 583*](#)) By entering into the settlement pursuant to [section 664.6](#), the parties ensured the settlement would result in either dismissal with prejudice (where the parties fully performed) or formal entry of judgment (where a party failed to perform). In other words, the parties relied on [section 664.6](#) to craft a settlement effecting a final, formal judgment or its functional equivalent. (Madrigal at 402-403)

“A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.4th 644, 649, citations omitted.) In the case at hand, the October 9, 2025, dismissal triggered rule 3.1702. The “Notice of Ruling Re. October 9, 2025, Trial Readiness Conference satisfies rule 8.104(1)(A)(B). As such, Plaintiff had until December 8, 2025 to file a motion for attorney fees. Plaintiff filed and served the fee motion on February 4, 2026, approximately 119 days post notice. Accordingly, Plaintiff’s motion is untimely.

RULING

1. Plaintiff’s Motion for Attorney Fees is DENIED.
2. Movant to give Notice.